

Equivalent Citations

citation codes .

Gautam Bhandari v. State Bank Of India

Madhya Pradesh High Court (Oct 25, 2024)

CASE NO.

WP 30822/2024

JUDGES

- HON'BLE SHRI JUSTICE SUBODH ABHYANKAR

ATTORNEY

- Savya Sachi Saxena

IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
BEFORE

HON'BLE SHRI JUSTICE SUBODH ABHYANKAR ON THE 25th OF OCTOBER, 2024
WRIT PETITION No. 30822 of 2024

GAUTAM BHANDARI AND OTHERS

Versus

STATE BANK OF INDIA AND OTHERS

Appearance:

Shri Sagar Soni- Advocate for the petitioners. Shri Arpit Guru- Advocate for the respondent No.1.

ORDER

1. This petition has been filed by the petitioners under Article 226 of the Constitution of India, seeking the following reliefs:-

"It is therefore most humbly prayed by the petitioner that by a suitable writ order or direction this Hon'ble Court may be pleased to: -

a) This petition may kindly be allowed with cost.

b) To direct the Respondent No. 6 to 10 thereby directing Respondents to remove the hold/ freeze on the Bank account of petitioners.

c) Issue such other orders, writ, and direction as this Hon'ble court deems fit in the interest of justice in favour of petitioner. "

2. The grievance of the petitioners is that their accounts have been freezed on account of some fraudulent activity.

3. Counsel for the petitioners has submitted that the petitioners are medical students, studying in fourth semester in Aurobindo College, Indore and were also trading in Crypto currency, in which the aforesaid transactions were made in their accounts. It is submitted that the petitioners may be allowed to operate their accounts, as the disputed entries are already on hold.

4. Counsel for the respondent No.1/ SBI has submitted that no case for interference is made out, however, it is not denied that on earlier occasions, this Court had passed various

(SUBODH ABHYANKAR)

JUDGE

orders and one such order was passed in the case of [Malcolm Murayis and Others Vs. State Bank of India and Others](#), W.P. No.1100/2024 dated 26.04.2024.

5. Heard. On due consideration of submissions and on perusal of the documents filed on record, it is found that so far as the order passed in the case of Malcolm Murayis (Supra) is concerned, it has been observed as under:-

"8] In compliance of the aforesaid order, State Bank of India has already sent emails to the concerned cyber crime cell of various police stations but except the cyber crime cell of Bangalore, Karnataka / respondent No.4 in connected petition W.P. No.1185/2024, no other police station has taken trouble to respond to the emails sent to them, which also demonstrates the poor functioning and irresponsible approach of the said cyber crime cells of various States as on one hand they had sent emails to the various banks to freeze certain accounts, and on the other hand they are not willing to respond to the emails sent to them.

9] In such circumstances, this Court is inclined to dispose of this petition with a direction to the respondents/Bank to keep the disputed amount as informed to them by various cyber crime agencies, in fixed deposits, which shall be allowed to be liquidated only after the orders are passed by the competent Judicial Magistrate within three months' time as it is expected from the *cybercrime* police to proceed in accordance with law under Section 102 of Cr.P.C., or any other law on which they are relying upon, failing which the amount so kept in FDs may also be allowed to be withdrawn by the petitioners under intimation to the *cybercrime* agencies."

(Emphasis Supplied)

6. On due consideration of the reliefs sought by the petitioners, as also the aforesaid order, this Court is inclined to dispose of this petition with a direction to the respondents/Bank to keep the disputed amount as informed to them by various cyber crime agencies, in fixed deposits, which shall be allowed to be liquidated only after the orders are passed by the competent Judicial Magistrate within three months' time as it is expected from the *cybercrime* police to proceed in accordance with law under Section 102 of Cr.P.C., or any other law on which they are relying upon, failing which the amount so kept in FDs may also be allowed to be withdrawn by the petitioners under intimation to the *cybercrime* agencies.

7. With the aforesaid direction, the petition stands disposed of. Bahar